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Case Number: 23STCV31795 Hearing Date: September 18, 2026 Dept: 224

Anonymity Assets, LLC v. Pacific Crest Realty Advisors LLC et al.,

TENTATIVE RULING

The motion for attorney's fees is GRANTED IN PART. The Court awards \$88,592.77 in attorney's fees against Plaintiffs Anonymity Assets, LLC and Victoria Green, jointly and severally. The request for \$2,946.39 in costs is DENIED.

ANALYSIS

Introduction

On December 29, 2023, Plaintiffs filed the Complaint in this action, asserting a sole cause of action for breach of contract (specific performance) against Defendants.

On October 14, 2025, the Court granted Defendants' Motion for Summary Judgment, holding Plaintiffs' claim barred by collateral estoppel.

On November 14, 2025, Defendants filed the instant Motion for Attorney's Fees, seeking \$88,592.77 in fees and \$2,946.39 in costs.

On September 4, 2026, Anonymity filed its opposition. Green filed no opposition.

Legal Standard

"[A]s a general rule, attorney fees are not recoverable as costs unless they are authorized by statute or agreement." (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (2007) 147 Cal.App.4th 424, 429.)

For contracts actions, "where the contract specifically provides that attorney's fees and costs, which are incurred to enforce the contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code § 1717(a).) "[T]he party prevailing on the contract shall be the party who

recovered a greater relief in the action on the contract.” (Id.)

“The determination of what constitutes a reasonable fee generally ‘begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....” “[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award....” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.)

“In determining the lodestar amount, a prevailing party generally may not recover for work on causes of action on which the party was unsuccessful” except in some cases where amounts are so intertwined that it would be impracticable to separate them out. (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal.App.4th 328, 342; Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 157.) “ ‘Attorneys fees need not be apportioned between distinct causes of action where plaintiff’s various claims involve a common core of facts or are based on related legal theories.’” Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 159.) “[A]ttorney fees need not be reduced for work on unsuccessful claims if the claims ‘are so intertwined that it would be impracticable, if not impossible, to separate the attorney’s time into compensable and noncompensable units.’” (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal. App. 4th 328, 342.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of “‘fees customarily charged by that attorney and others in the community for similar work.’” (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997, overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664.) “‘A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.’” (Chavez v. City of L.A. (2010) 47 Cal.4th 970, 990.)

Motion for Attorney’s Fees

Here, Defendants move the Court for an award of attorney’s fees in the amount of \$88,592.77 and costs in the amount of \$2,946.39, for a total of \$91,539.16.

Entitlement to Fees

Section 7.3 of the Agreement provides that where any party to the Agreement, “or any person or entity acting for them,” commences an action or proceeding to enforce any provision of the Agreement, or is required to defend any action or proceeding the defense to which is any provision of the Agreement, “the unsuccessful Party or Parties agrees to pay the successful Party or Parties all recoverable attorneys’ fees and costs.”

Plaintiffs pleaded a single cause of action for breach of contract seeking specific performance of the purchase terms set out in the Agreement. That is an action on a contract within the meaning of Civil Code section 1717. Defendants obtained summary judgment and Plaintiffs recovered nothing. Defendants are the parties prevailing on the contract.

Anonymity argues that it never signed the Agreement and never contracted to assume its fee-shifting provision, and that section 1717 reciprocity does not confer fee rights on every nonsignatory. Relying on Sessions Payroll, it contends that a nonsignatory suing as a third-party beneficiary cannot recover contractual fees absent evidence that the contracting parties intended to include it within the fee provision, and that Defendants have identified no such language.

However, here, Anonymity did not sue as a third-party beneficiary. It sued as Green’s assignee. In granting summary judgment, the Court found that “Green, who assigned her rights to Anonymity, is in privity with it as a matter of law,” and relied on that finding to supply the privity element of collateral estoppel.

Sessions Payroll provides that reciprocity applies where the nonsignatory would have been entitled to fees had it prevailed. (Sessions Payroll, *supra*, 84 Cal.App.4th at pp. 677-679.) Anonymity did not defend a contract claim brought against it. Rather, it affirmatively prosecuted this action seeking specific performance. Had it prevailed, it would have sought fees under section 7.3, which by its terms reaches "any person or entity acting for" a party.

Anonymity further argues that Constantinescu is not a party to the Agreement and has cited no basis for fees, and it quotes Defendants' summary judgment brief stating that he acted only as the Receiver's representative and bears no personal liability. Under *Reynolds Metals*, that cuts the other way. Plaintiffs named Constantinescu as a defendant on their single contract cause of action and sought to hold him answerable for performance of the Agreement. Had they prevailed on that theory, they could have recovered fees against him under section 7.3. A defendant sued on a contract as though bound by it may recover fees when he prevails by showing he was not. (*Reynolds Metals*, *supra*, 25 Cal.3d at p. 128.)

Defendants are accordingly entitled to recover their reasonable attorney's fees under section 7.3 of the Agreement and Civil Code section 1717. Green is liable as a signatory to the Agreement. Anonymity is liable because it prosecuted this action on the Agreement as Green's assignee and would have been entitled to fees under section 7.3 had it prevailed. Constantinescu may recover because Plaintiffs sued him on the Agreement as though he were bound by it, and he prevailed.

Lodestar

Defendants request a lodestar in the amount of \$88,592.77, comprising \$70,028.00 billed by Kunzler Bean & Adamson, PC ("KBA") from the inception of the action through approximately February 2025, and \$18,564.77 billed by Buchalter thereafter. (Adamson Decl. ¶¶ 8-10.)

The billing records reflect hourly rates of \$665 (2024) and \$715 (2025) for Mr. Adamson, a shareholder admitted in 2007 with more than eighteen years of litigation experience; \$500 for attorneys S. Richards and R. Calderon; \$425 for S. Hughes; \$325 for L. Scoresby; \$195 to \$275 for A. Ahlstrom; \$225 for paralegal time; and \$72 to \$105 for staff research services. (Adamson Decl. ¶ 11 & Exhs. 3-4.)

The Court finds the hourly rates to be reasonable.

Defendants do not state the approximate number of hours for which they seek compensation. The Adamson declaration sets forth only the total fees billed by each firm. (Adamson Decl. ¶¶ 8-10.) The Buchalter invoices include timekeeper recaps reflecting 28.30 hours; the KBA invoices, with one exception, contain no hours summary, and the Court cannot reconstruct a reliable total from the entries as submitted. Counsel shall be prepared to address the issue of the failure to address the total hours claimed at the hearing, as this may be a basis to reduce the requested amount.

In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

Anonymity's opposition challenges the hours as excessive, but does so in general terms. Anonymity fails to point to any specific entries. The lodestar is awarded in the amount of \$88,592.77.

Costs

Defendants seek \$2,946.39 in costs by way of this motion. Costs are claimed by memorandum of costs under California Rules of Court, rule 3.1700. Section 7.3 refers to costs as well as fees, but a contractual right to costs does not displace the statutory procedure for claiming them.

The request for costs is denied.

Anticipated Fees

Paragraph 20 of the Adamson declaration reserves a request for additional fees, to be quantified in reply, for preparing the reply, preparing for the hearing, and preparing an order. A fee request first made in reply deprives the opposing party of an opportunity to respond, and no evidence supporting such an award is before the Court. The request is denied. The award above includes reasonable compensation for the fee motion.

Conclusion

The motion for attorney's fees is GRANTED IN PART. The Court awards \$88,592.77 in attorney's fees against Plaintiffs Anonymity Assets, LLC and Victoria Green, jointly and severally. The request for \$2,946.39 in costs is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.